

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
JAMES AYALA,

Plaintiff,

Plaintiff designates
Bronx County
the place of trial

- against -

The basis of venue is
Location of incident

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER JASON VASQUEZ (Tax
#941163) and NEW YORK CITY POLICE
OFFICER "JOHN DOE",

Defendant.

SUMMONS

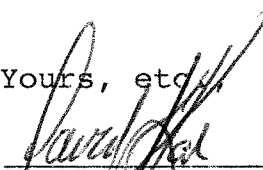
Plaintiff resides at:
717 Kelly Street, 1A
Bronx, NY 10455

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To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
December 20, 2024

Yours, etc.


David A. Karlin, Esq.

BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff(s)
Office & P. O. Address
1937 Williamsbridge Road, 2nd Fl.
Bronx, New York 10461
(718) 655-2900

Defendant(s) Address(es):

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007
NEW YORK CITY POLICE OFFICER JASON VASQUEZ (Tax ID #941163)
1 Police Plaza
New York, New York 10038
NEW YORK CITY POLICE OFFICER "JOHN DOE"
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JAMES AYALA,

Plaintiff,

VERIFIED COMPLAINT

- against -

Index No:

THE CITY OF NEW YORK and NEW YORK CITY
POLICE OFFICER JASON VASQUEZ (Tax
#941163) and NEW YORK CITY POLICE OFFICER
"JOHN DOE,"

Defendant.
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Plaintiff, by and through his attorneys, **BELOVIN FRANZBLAU & ASSOCIATES, PC**, as and for a Verified Complaint, respectfully alleges as follows:

1. At all the times herein, plaintiff was and still is, a resident of the City and State of New York, County of Bronx.

2. At all the times herein, the defendant, **THE CITY OF NEW YORK**, was, and still is a duly licensed Municipal Corporation authorized to transact business in City of New York, County of Bronx, State of New York.

3. Upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed **NEW YORK CITY POLICE OFFICER JASON VASQUEZ**, who utilizes Tax #941163, and who was herein duly employed and acting as a Police Officer (or other ranking officer) with the police department of **THE CITY OF NEW YORK**.

4. Upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed **NEW YORK CITY POLICE OFFICER JASON VASQUEZ**, who was herein duly employed and acting as a Police Officer (or other ranking officer) with the police department of **THE CITY OF NEW YORK**.

5. Upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, believed to be P.O. LaMotta and referred to as such in the Notice of Claim, hereinafter referred to as "JOHN DOE" who was herein duly employed and acting as a Police Officer (or other ranking officer) with the police department of **THE CITY OF NEW YORK**.

6. Upon information and belief, all times herein, the defendant, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ**, was and still is an employee of **THE CITY OF NEW YORK** as a Police Officer (or other ranking officer).

7. Upon information and belief, all times herein, the defendant, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ**, was and still is an employee of **THE CITY OF NEW YORK** as a Police Officer (or other ranking officer) and was at all times herein, acting within the furtherance and scope of his employment with **THE CITY OF NEW YORK**.

8. Upon information and belief, all times herein, the defendant, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ**, was and

still is an employee of **THE CITY OF NEW YORK** as a Police Officer (or other ranking officer) and was at all times herein, acting within the furtherance and scope of his employment with **THE NEW YORK CITY POLICE DEPARTMENT**.

9. **THE CITY OF NEW YORK** condoned all of the actions of **NEW YORK CITY POLICE OFFICER JASON VASQUEZ**, as set forth herein and hereinafter.

10. The defendant, **THE CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendant, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ**, pursuant to the doctrine of respondeat superior.

11. The defendant, **THE CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendant, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ**, and all other uniformed officers who acted with P.O. Vasquez, pursuant to the doctrine of respondeat superior.

12. The defendant, **THE CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendant, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ** and others within **THE NEW YORK CITY POLICE DEPARTMENT**, pursuant to the doctrine of respondeat superior.

13. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the

acts of the defendant, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ**, as herein and hereinafter set forth.

14. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ**, and all other uniformed officers who acted with P.O. Vasquez, as herein and hereinafter set forth.

15. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ** and all of the acts of **THE NEW YORK CITY POLICE DEPARTMENT**, as herein and hereinafter set forth.

16. Upon information and belief, each and all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ**, alleged herein was done, both as an individual and under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York, and under the authority and/or color of his authority and his position as a Police Officer (or other ranking officer) for the defendant, **THE CITY OF NEW YORK**.

17. Upon information and belief, all times herein, the defendant, **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, was and still is an employee of **THE CITY OF NEW YORK** as a Police Officer (or other ranking officer).

18. Upon information and belief, all times herein, the defendant, **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, was and still is an employee of **THE CITY OF NEW YORK** as a Police Officer (or other ranking officer) and was at all times herein, acting within the furtherance and scope of his employment with **THE CITY OF NEW YORK**.

19. Upon information and belief, all times herein, the defendant, **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, was and still is an employee of **THE CITY OF NEW YORK** as a Police Officer (or other ranking officer) and was at all times herein, acting within the furtherance and scope of his employment with **THE NEW YORK CITY POLICE DEPARTMENT**.

20. **THE CITY OF NEW YORK** condoned all of the actions of **NEW YORK CITY POLICE OFFICER "JOHN DOE"** as set forth herein and hereinafter.

21. The defendant, **THE CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendant, **NEW YORK CITY POLICE OFFICER "JOHN DOE"** pursuant to the doctrine of respondeat superior.

22. The defendant, **THE CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendant, **NEW YORK CITY POLICE OFFICER "JOHN DOE"** and all other uniformed officers who acted with P.O. "John Doe" pursuant to the doctrine of respondeat superior.

23. The defendant, **THE CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendant, **NEW YORK CITY POLICE OFFICER "JOHN DOE"** and others within THE NEW YORK CITY POLICE DEPARTMENT, pursuant to the doctrine of respondeat superior.

24. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER "JOHN DOE"** as herein and hereinafter set forth.

25. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER "JOHN DOE"** and all other uniformed officers who acted with P.O. "John Doe" as herein and hereinafter set forth.

26. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER "JOHN DOE"** and all of the acts of THE NEW YORK CITY POLICE DEPARTMENT, as herein and hereinafter set forth.

27. Upon information and belief, each and all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER "JOHN DOE"** alleged herein was done, both as an individual and under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York, and under the

authority and/or color of his authority and his position as a Police Officer (or other ranking officer) for the defendant, **THE CITY OF NEW YORK**

28. Upon information and belief, this incident began on or about April 12, 2024 at approximately 6:00 p.m., when the plaintiff, **JAMES AYALA**, was lawfully and properly in the vicinity of Prospect Avenue between E. 160th and E. 161st Streets, Bronx, New York and continued to the vicinity of E. 163rd Street between Tinton Avenue and Union Avenue, Bronx New York.

29. Upon information and belief, while the plaintiff was at the time, date and initial location as set forth herein, he was unlawfully, improperly and without probable, sufficient or legal cause, wrongly targeted, profiled, singled out, violated, bribed, pressured, and coerced to assist in a crime.

30. Upon information and belief, while the plaintiff was at the time, date and initial location as set forth herein, he was unlawfully, improperly and without probable, sufficient or legal cause, wrongly targeted, profiled, singled out, violated, paid, bribed, pressured, enticed, influenced and coerced to assist in a crime and plaintiff was not predisposed to engage or in any way participate in such crime prior thereto.

31. Upon information and belief, while the plaintiff was at the time, date and locations as set forth herein, he was unlawfully, improperly and without probable, sufficient or legal

cause, wrongly targeted, profiled, singled out, violated, paid, bribed, pressured, enticed, influenced and coerced to assist in a crime and plaintiff was not predisposed to engage or in any way participate in such crime prior thereto and thereafter, plaintiff was unlawfully, improperly and without probable, sufficient or legal cause, stopped, detained, handcuffed, searched, arrested and imprisoned, was maliciously prosecuted and had his constitutional rights violated.

32. Upon information and belief, while the plaintiff was at the time, date and locations as set forth herein, he was unlawfully, improperly and without probable, sufficient or legal cause, wrongly targeted, profiled, singled out, violated, paid, bribed, pressured, enticed, influenced and coerced to assist in a crime and plaintiff was not predisposed to engage or in any way participate in such crime prior thereto and thereafter, plaintiff was unlawfully, improperly and without probable, sufficient or legal cause, stopped, stopped violently, stopped overly aggressively, knocked off a bicycle, tackled, and violently struck, with the offending officer committing all such acts while failing to identify himself or request the plaintiff to stop prior thereto, and plaintiff was assaulted and battered and thereafter detained, handcuffed, searched, arrested and imprisoned, was maliciously prosecuted and had his constitutional rights violated.

33. Upon information and belief, the defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JASON VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE"** and other uniformed officers with whom P.O. Vasquez and/or "John Doe" acted, acted unlawfully, improperly and without probable or sufficient cause, in committing the acts set forth above and as such, violated the Constitutional rights of the plaintiff, and the plaintiff was aware of all such actions and did not consent to any such actions.

34. Upon information and belief, the defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JASON VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE"** and other uniformed officers who acted with P.O. Vasquez, acted unlawfully, improperly and without probable or sufficient cause, in committing the acts set forth above and the accusations by defendants that the plaintiff had committed a crime were unsupported by evidence, by a reasonable interpretation of the evidence, by facts, were false and improper, failed to take into account that plaintiff was wrongly targeted, profiled, singled out, violated, paid, bribed, pressured, enticed, influenced and coerced to assist in a crime and plaintiff was not predisposed to engage or in any way participate in such crime prior thereto.

35. Upon information and belief, all charges associated with plaintiff's arrest were dismissed, in their entirety, on or about August 6, 2024.

36. Upon information and belief, during the time the plaintiff was unlawfully held at the scene of this incident, the police vehicle and/or at the police precinct and/or at the Courthouse, the plaintiff was forced to undergo great emotional and mental anguish and emotional and physical harm, and loss of liberty and freedom, and was kept and imprisoned against his will, and plaintiff was also forced to undergo great physical, emotional and mental anguish thereafter.

37. Prior to the commencement of this action, on or about the 15th day of May, 2024, a Notice of Claim was duly served herein on the defendant, **THE CITY OF NEW YORK**, for all claims herein other than the malicious prosecution claim, resulting in plaintiff undergoing a 50-H hearing on or about the 22nd day of July, 2024 pursuant to the General Municipal Law and on or about the 19th day of September 2024, a Notice of Claim was duly served herein on the defendant, **THE CITY OF NEW YORK**, for the malicious prosecution and violation of civil rights claim and thereafter and to date, the defendant, **THE CITY OF NEW YORK**, has failed and neglected to request a 50-H hearing on this updated claim, and further, at no time prior to this action being brought, did the defendant or any of the defendants' representatives, settle or attempt to settle this claim. This action is timely and properly brought.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST AGAINST THE
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JASON VASQUEZ and
NEW YORK CITY POLICE OFFICER "JOHN DOE"

38. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "37", above as if fully set forth herein.

39. On or about April 12, 2024 at approximately 6:00 p.m., the plaintiff, **JAMES AYALA**, was lawfully and properly in the vicinity of Prospect Avenue between E. 160th and E. 161st Streets, Bronx, New York and continued to the vicinity of E. 163rd Street between Tinton Avenue and Union Avenue, Bronx New York.

40. Upon information and belief, on April 12, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely arrested.

41. Upon information and belief, on April 12, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely arrested and such was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers with whom **P.O. JASON VASQUEZ AND P.O. "JOHN DOE"** acted.

42. Upon information and belief, on April 12, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely arrested and all was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers with whom **P.O. JASON VASQUEZ AND**

P.O. "JOHN DOE" acted, and plaintiff was aware of all such actions and did not consent to any such actions.

43. Upon information and belief, by the reason of the aforesaid **FALSE ARREST** of the plaintiff by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time and/or loss of enjoyment of life, for which plaintiff is entitled to damages from defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER JASON VASQUEZ AND NEW YORK POLICE OFFICER "JOHN DOE"**, and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE IMPRISONMENT
AGAINST THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JASON
VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE"**

44. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "43", above as if fully set forth herein.

45. On or about April 12, 2024 at approximately 6:00 p.m., the plaintiff, **JAMES AYALA**, was lawfully and properly in the vicinity of Prospect Avenue between E. 160th and E. 161st Streets, Bronx, New York and continued to the vicinity of E. 163rd Street between Tinton Avenue and Union Avenue, Bronx New York.

46. Upon information and belief, on April 12, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, unlawfully imprisoned.

47. Upon information and belief, on April 12, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, unlawfully imprisoned and such was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers with whom **P.O. JASON VASQUEZ AND P.O. "JOHN DOE"** acted.

48. Upon information and belief, on April 12, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, unlawfully imprisoned and all was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers with whom **P.O. JASON VASQUEZ AND P.O. "JOHN DOE"** acted, and plaintiff was aware of all such actions and did not consent to any such actions.

49. Upon information and belief, by the reason of the aforesaid **UNLAWFUL IMPRISONMENT** of the plaintiff by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time and/or loss of enjoyment of life, for which plaintiff is entitled to damages from defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER JASON VASQUEZ AND NEW YORK**

POLICE OFFICER "JOHN DOE", and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT AGAINST THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JASON VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE"

50. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "49", above as if fully set forth herein.

51. On or about April 12, 2024 at approximately 6:00 p.m., the plaintiff, **JAMES AYALA**, was lawfully and properly in the vicinity of Prospect Avenue between E. 160th and E. 161st Streets, Bronx, New York and continued to the vicinity of E. 163rd Street between Tinton Avenue and Union Avenue, Bronx New York.

52. Upon information and belief, on April 12, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, and in an improper and overly zealous and violent manner, and without the offending officer identifying himself, jumped, attacked, pushed, struck, beaten, battered, threatened and assaulted unnecessarily, falsely and improperly while plaintiff was not engaging in any activity which would warrant such a battery and assault and plaintiff was aware of the immediate danger of the defendants' threats and actions and did not consent to such threats or actions and said threats and actions by the defendant placed

plaintiff in fear of imminent harm and did in fact unnecessarily cause harm and injury to plaintiff herein.

53. Upon information and belief, all of the above occurred and was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers who acted with P.O. Jason Vasquez and/or P.O. "John Doe."

54. Upon information and belief, by the reason of the aforesaid **ASSAULT** of the plaintiff by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time and/or loss of enjoyment of life, for which plaintiff is entitled to damages from defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JASON VASQUEZ (Tax #941163) and NEW YORK CITY POLICE OFFICER "JOHN DOE"** and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION FOR BATTERY AGAINST THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JASON VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE"

55. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "54", above as if fully set forth herein.

56. On or about April 12, 2024 at approximately 6:00 p.m., the plaintiff, **JAMES AYALA**, was lawfully and properly in the

vicinity of Prospect Avenue between E. 160th and E. 161st Streets, Bronx, New York and continued to the vicinity of E. 163rd Street between Tinton Avenue and Union Avenue, Bronx New York.

57. Upon information and belief, on April 12, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, and in an improper and overly zealous and violent manner, and without the offending officer identifying himself, the plaintiff was jumped, attacked, pushed, struck, beaten, battered threatened and assaulted unnecessarily and without good or sufficient cause, and the plaintiff was not engaging in any activity which would warrant such a battery and assault and plaintiff was aware of the immediate danger of the defendants' threats and actions and did not consent to such threats or actions and said threats and actions by the defendant placed plaintiff in fear of imminent harm and did in fact unnecessarily cause harm and injury to plaintiff herein.

58. Upon information and belief, all of the above occurred and was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers who acted with P.O. Jason Vasquez and/or P.O. "John Doe."

59. Upon information and belief, by the reason of the aforesaid **BATTERY** of the plaintiff by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time

and/or loss of enjoyment of life, for which plaintiff is entitled to damages from defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JASON VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE"** and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
AGAINST THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JASON
VASQUEZ AND NEW YORK CITY POLICE OFFICER "JOHN DOE"**

60. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "59", above as if fully set forth herein.

61. On or about April 12, 2024 at approximately 6:00 p.m., the plaintiff, **JAMES AYALA**, was lawfully and properly in the vicinity of Prospect Avenue between E. 160th and E. 161st Streets, Bronx, New York and continued to the vicinity of E. 163rd Street between Tinton Avenue and Union Avenue, Bronx New York.

62. Upon information and belief, on April 12, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, unlawfully arrested, imprisoned and maliciously prosecuted.

63. Upon information and belief, the initiation of the legal proceedings against the plaintiff was improper, without probable or just cause, was amoral, wrongful and done with malice.

64. Upon information and belief, all charges for all actions undertaken by plaintiff on April 12, 2024 were dismissed on or about August 6, 2024.

65. Upon information and belief, due to the malicious prosecution and actions of the defendants herein, the plaintiff had to return to Court on several occasions, was inconvenienced, was caused to pay money in travel, was caused to miss and/or change important medical appointments, was caused stress and worry, and was caused to lose other monetary opportunities.

66. Upon information and belief, the plaintiff was maliciously prosecuted and such was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers who acted with P.O. JASON VASQUEZ and/or P.O. "JOHN DOE."

67. Upon information and belief, the plaintiff was maliciously prosecuted and such was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers who acted with P.O. JASON VASQUEZ and/or P.O. "JOHN DOE" and plaintiff was aware of said prosecution, did not consent to any such prosecution and did not independently perform any acts which would or should have resulted in the malicious prosecution as plaintiff was knowingly paid, bribed, pressured, enticed, influenced and coerced to assist in a crime by

the defendants and plaintiff was not predisposed to engage or in any way participate in such crime prior thereto and thereafter.

68. Upon information and belief, by the reason of the aforesaid **MALICIOUS PROSECUTION** of the plaintiff by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of money, loss of income, loss of opportunity to gain or obtain money, loss of money for travel expense related to defendants' actions, loss of time and/or loss of enjoyment of life, for which plaintiff is entitled to damages from defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER JASON VASQUEZ AND NEW YORK POLICE OFFICER "JOHN DOE"**, and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S
CIVIL RIGHTS PURSUANT TO 42 USC §1983 AGAINST NEW YORK CITY
POLICE OFFICER JASON VASQUEZ (Tax #941163) AND NEW YORK CITY
POLICE OFFICER "JOHN DOE"**

69. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "68", above as if fully set forth hereinafter.

70. Upon information and belief, during all the times herein, the individual defendant, **NEW YORK CITY POLICE OFFICER**

JASON VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE" acted under the cover of law and statutes, ordinances, regulations, customs and usages of the City and State of New York, County of Bronx.

71. Upon information and belief, defendant, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE"** engaged in improper and/or illegal conduct as set forth herein, to the injury of the plaintiff, and deprived plaintiff of the rights, privileges, and immunities, secured to the plaintiff by the Constitution of the United States and Federal Laws of the United States.

72. Upon information and belief, defendant, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE"** engaged in improper and/or illegal conduct as set forth herein, to the injury of the plaintiff, and deprived plaintiff of the rights, privileges and immunities secured to the plaintiff by the Constitution of the United States and Federal Laws of the United States in that he unlawfully, improperly and without probable or sufficient cause, wrongly stopped, targeted, profiled, singled out, violated, held, detained, battered, assaulted, searched, arrested, handcuffed and imprisoned the plaintiff, and the plaintiff was the subject of a malicious prosecution regarding criminal charges which have since been dismissed, all without probable cause or legal justification and all precipitated by the

unlawful and/or improper actions of the defendants herein and/or those uniformed officers who acted with P.O. Vasquez and/or P.O. "John Doe."

73. Plaintiff was aware of all actions set forth herein and did not consent to any such actions and such actions deprived the plaintiff of his constitutional rights and annuities secured by the United States Constitution, to wit, freedom from entrapment, bribery, illegal seizure, illegal search, violative search, illegal detention, assault, battery, overly zealous policing, police brutality, coercion, and intimidation, all secured by the Constitution of the United States and 42 United States Code Section 1983.

74. Upon information and belief, the defendants acted knowingly and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

75. Upon information and belief, the actions and conduct described herein by **NEW YORK CITY POLICE OFFICER JASON VASQUEZ** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"** and the New York City Police Department constituted and demonstrates an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department and **NEW YORK CITY POLICE OFFICER JASON VASQUEZ** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"** and constituted a continuing pattern of abuse and misconduct by the New York City Police Department in general and specifically, **NEW**

YORK CITY POLICE OFFICER JASON VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE" and said misconduct and official unconstitutional policy caused plaintiff to be subjected to the aforesaid conduct and deprived of his constitutional rights.

76. Upon information and belief, at all times herein, THE CITY OF NEW YORK condoned the above unconstitutional conduct by its police officers as is demonstrated and documented by the substantial and reoccurring number of 42 USC § 1983 claims filed against THE CITY OF NEW YORK and/or the New York City Police Department and this official unconstitutional pattern of behavior has been demonstrated on several occasions by both the New York City Police and other investigations as well as repeatedly shown by the actions of the New York City Police Department.

77. Upon information and belief, as a direct and proximate result of the conduct by the defendants, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE,"** the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, loss of constitutional rights, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

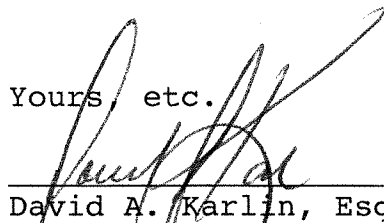
78. Plaintiff hereby demands compensation and punitive damages against defendants, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE,"** together with

reasonable attorney's fees pursuant to 42 United State Code Section 1983 and other Civil Rights Statutes.

WHEREFORE, plaintiff demands judgment against the defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER JASON VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE"**, jointly and severally, in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action for FALSE ARREST, and in amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action for FALSE IMPRISONMENT, and in amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action for ASSAULT, and in amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action for BATTERY, and in amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of Action for MALICIOUS PROSECUTION, and in amount exceeding the jurisdictional limits of all lower Courts plus attorney's fees and punitive damages on the Sixth Cause of Action against defendants, **NEW YORK CITY POLICE OFFICER JASON VASQUEZ and NEW YORK CITY POLICE OFFICER "JOHN DOE"**, for CIVIL RIGHTS VIOLATIONS, together with costs, interest and disbursements of this action, and together with attorneys' fees, and together with such other and further relief as this Court deems just and proper.

Dated: Bronx, New York
December 20, 2024

Yours, etc.



David A. Karlin, Esq.

BELOVIN FRANZBLAU & ASSOCIATES, PC

Attorneys for Plaintiff

1937 Williamsbridge Road

2nd Floor, Suite B

Bronx, New York 10461

(718) 655-2900

VERIFICATION

State of New York)

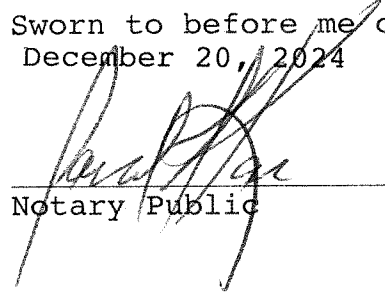
ss:

County of Bronx)

JAMES AYALA, being duly sworn, deposes and says: That (s)he is the plaintiff in these proceedings; that (s)he has read and knows the contents of the above VERIFIED COMPLAINT and that the same is true to her/his own knowledge except as to the matters therein stated to be alleged upon information and belief, as to those matters, (s)he believes them to be true.


JAMES AYALA

Sworn to before me on
December 20, 2024


Notary Public

DAVID A. KARLIN
Notary Public, State of New York
No. 02KA6050239
Qualified in Westchester County
Commission Expires 10/30/2026